

21STCV17195 21STCV17195

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Case Number: 21STCV17195 Hearing Date: September 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

NIVO-1, LLC, et al.,

Plaintiffs,

vs.

LIN DEE LIU,

et al.,

Defendants.

Case No.:

21STCV17195

Hearing Date:

September 14, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE] ORDER

RE:

DEFENDANTS' MOTION

FOR RECONSIDERATION OF JULY 30, 2026 RULINGS OF THE COURT

Background

Plaintiffs Nivo 1, LLC, DA BEEC-007, LLC, and Anne Kihagi ("Kihagi") (collectively, "Plaintiffs") filed this action on May 6, 2021 against Defendants Lin Dee Lu Services, Yu Sheng Victor Liu, and Xiang Liu. On April 26, 2022, Plaintiffs filed the operative First Amended Complaint, alleging nine causes of action.

On July 31, 2022, Plaintiffs filed an Amendment to Complaint substituting the name "Lin Dee Liu Services" for the incorrect name "Lin Dee Lu Services." On December 13, 2022, Plaintiffs filed an Amendment to Complaint naming Eric Liu in place of "Doe 2," and an Amendment to Complaint naming Building Future Foundation in place of "Doe 3."

Defendants Lin Dee Liu dba Lin Dee Liu Services, Yu Sheng Victor Liu, Xiang Liu, Eric Liu, and Building Future Foundation (collectively, "Defendants") now move for reconsideration of the Court's July 30, 2026 ruling. Plaintiffs oppose. Defendants replied.

Legal Standard

Code of Civil Procedure section 1008, subdivision (a) provides:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new

or different facts, circumstances, or law are claimed to be shown.

The legislature intended to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and a valid reason for not offering it earlier. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500)

“The burden under [Code of Civil Procedure] section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

“[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342.) Reconsideration cannot be granted based on claims that the court misinterpreted the law in its initial ruling. (Gilberd v. AC Transit, supra, 32 Cal.App.4th at p. 1500.)

“[F]acts of which the party seeking reconsideration was aware at the time of the original ruling are not ‘new or different.’” (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.)

Discussion

Defendants seek reconsideration of the Court’s July 30, 2026 decision, which granted in part Plaintiffs’ ex parte motion for relief from failing to file an updated exhibit list and an updated witness list. Specifically, Defendants “will and hereby do move the Court pursuant to CCP Secs. 1008 and 473 for reconsideration of and to set aside the Court’s rulings issued July 30, 2026, which vacated the Court’s prior orders of July 27, 2026, July 23, 2026, July 20, 2026, and July 13, 2026, all of which affirmed and ordered that the operative exhibit and witness lists for trial in this matter were those filed May 23, 2024 (the exhibit list as amended filed July 16, 2026 pursuant to the July 13, 2026 order of the Court).” (Notice of Mot., 1:5-10.)

Defendants present a myriad of facts to the Court which relate to the history of the case and substantial prejudice, contending that they could not present these facts to the Court previously, explaining that "Plaintiffs submitted their (Fourth, jurisdictionally-barred) request for reconsideration via ex parte application and Defendants' counsel were in deposition in another matter, and working on post-trial briefing in two separate additional matters as well as the opposition to Plaintiffs Third ex parte application which the Court had ordered to be filed by July 30, 2026, the same day Plaintiffs brought the subject Fourth ex parte application, and were unable to prepare any opposition." (Notice of Mot., 2:22-27.)

In support, Defendants provide a declaration attesting to the inability to present this information earlier. Defendants' counsel attests that "[i]n the exercise of reasonable diligence, we were unable to present these matters to the Court on July 30th. We had only received ex parte notice one day earlier. On that day, I was in deposition from 10:00 a.m. to 4:00 p.m. in Ostroy v. Yelnin, San Mateo SC Case No. 19-FAM01412. After that concluded I had to finish and file a post-trial brief in Rancho WG v. National Integrity, JAMS Reference No. 1120017458. It was filed at 6:23 p.m., then I had to go home. We have two kids (2 yrs and 4 yrs), the elder is special needs autistic and very challenging/difficult. My wife was taking care of them all day (summer school is over now) and I have to get home to help her and relieve her of child duty. I had no chance to prepare an opposition. The most I could do was jot down notes for a brief outline, and it came as a surprise when the Court focused on the FSC issue which had not been a centerpiece of their motion but apparently 'caught the eye' of the Court. Also, on July 29th Mr. Tillotson was engrossed in preparing a post-trial brief in Stone v. Hirsch, Marin County SC Case No. CV0005665 as well as preparing the opposition to Plaintiffs' third reconsideration application, which the Court ordered was due on July 30. Neither of us had an opportunity to review the lengthy convoluted procedural history of this matter and prepare an opposition." (Sahae Decl., ¶ 11.)

Defendants' counsel further states, "[t]hat's the primary reason why these matters could not, in the exercise of reasonable diligence, have been presented to the Court in opposition to Plaintiffs' application. There is also a secondary reason." (Sahae Decl., ¶ 13.) "Namely, we reasonably expected Plaintiffs' application to not even be entertained by the Court. After all, the Court had been firm on maintaining its prior orders, and Plaintiffs had not made any effort to satisfy CCP 1008, which is jurisdictional. Relitigation of decided issues is the same conduct that had her

deemed a vexatious litigant, which was affirmed by the Court of Appeal. *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108-1109 holds that absent compliance with CCP 1008, or the Court issuing a formal sua sponte notice with opportunity to file briefing, a party does not have to respond to the suggestion that a prior ruling be reconsidered.” (Sahae Decl., ¶ 13.) “In sum, I respectfully submit that ample grounds exist here for the Court to entertain reconsideration of the July 30, 2026 rulings based on facts and law which could not have been presented earlier despite reasonable diligence.” (Sahae Decl., ¶ 14.)

In light of the foregoing, the Court finds that the motion for reconsideration is proper. Defendants explain that they could not have reasonably prepared an opposition to Plaintiffs’ ex parte motion. Although, as Plaintiffs contend in their opposition, the facts presented are not new per se, these facts are new to the Court; the Court did not consider them in its previous ruling, and Defendants show they could not reasonably have presented them earlier. (See *Gilberd v. AC Transit*, supra, 32 Cal.App.4th at p. 1500 [“clear legislative intent to restrict motions to reconsider to circumstances where a party offers the court some fact or authority that was not previously considered by it.”].)

Turning to the merits of Defendants’ motion, Defendants’ declaration explains that “[t]he Court granted Plaintiffs’ application on the grounds that there had been no Final Status Conference (‘FSC’). As it turns out, that was not the case.” There was an FSC on May 24, 2024. (Sahae Decl., ¶ 2; Ex. B.) Exhibit B attached to Defendants’ declaration confirms that an FSC was held. (Ibid.) Exhibit B is the minute order from May 24, 2024 which describes the “Nature of Proceedings” as “Final Status Conference.” The minute order confirms that the Final Status Conference was held. More specifically, the minute order indicates that the parties stipulated to a Court trial to be conducted via Zoom; they agreed that Defendant would provide a reporter; the parties would finalize the Stipulated Facts prior to trial and they would file trial briefs. The only remaining task for the Court was to “rule on the one objection to exhibits.” The parties were to contact the courtroom on June 4th to determine the status of the trial ahead of them. The Court indicated that it intended to start their trial thereafter. Nothing else was left to do to start the trial.

Defendants’ counsel declares that “the record is clear that the May

23, 2024 lists were submitted in performance of a duly-noticed and issued Case Management Order setting an FSC. That Order was issued on May 23, 2023. The Order said the parties were ordered to comply with the FSC requirements in the Courtroom Information and lodge trial readiness materials by May 17, 2024. It said, 'The parties are ordered to comply with the Courtroom Information requirements.' (bold and italics in original)." (Sahae Decl., ¶ 3; Ex. C.)

Defendants' declaration sufficiently demonstrates that an FSC occurred before the previous trial date. Los Angeles Super Court Local Rule 3.25(f)(1) specifically provides as follows:

"At least five days prior to the final status conference, counsel must serve and file lists of pre-marked exhibits to be used at trial (Local Rules 3.151, 3.53, and 3.149), jury instruction requests, trial witness lists, and a proposed short statement of the case to be read to the jury panel explaining the case. Failure to exchange and file these items may result in not being able to call witnesses, present exhibits at trial, or have a jury trial. If trial does not commence within 30 days of the set trial date, a party has the right to request a modification of any final status conference order or any previously submitted required exchange list."

Defendants contend that "Plaintiffs approved and agreed to the May 23, 2024 lists in anticipation of a June 2024 FSC. Plaintiffs were on clear notice from Defense counsel's September 5, 2025 email that their expanded trial materials constituted a change to the already approved lists. Yet they exercised zero diligence in acting upon that notice: they didn't move to amend the lists, they didn't make any objection to the four-afternoon trial schedule when it was calendared at their request in January 2026, they did not attempt to show (and have never offered to show) grounds for 473 relief why their approval and agreement to the May 23, 2024 lists constituted excusable neglect, they never even bothered to file their new lists in compliance with Local Rule 3.25(f) until after the July 2026 FSC proceedings were already underway." (Mot., 1:22-2:3)

Defendants assert that "[t]he procedure is simple. File the lists. Failure to file may result in the inability to use exhibits or call witnesses. If trial does not commence within 30 days, a party can request modification. That means what it says: 'request modification.' Whether the reason trial did not commence is by continuance or vacating the trial date due to Plaintiffs'

noncompliance with CRC Rule 3.650 is immaterial. Plaintiffs did not request modification. Mr. Sahae's September 5, 2025 email expressly put them on notice of the need to do so, but they stayed mum. They took their chances. Instead of requesting modification, Plaintiffs simply included amended lists (to which Mr. Sahae had previously objected) in an exhibit binder and delivered it late to the court. That is after they did not secure witnesses presence, did not participate in a court-ordered settlement program and did not meet and confer on stipulated facts. Late delivery of a binder is not a modification request, and their conduct belies their claim of excusable neglect. Plaintiffs argued that 'Plaintiffs received no advance notice that the June 2024 Joint Witness List or its "preliminary" trial estimate would be treated as a binding limitation on Plaintiffs' presentation of evidence.' No such notice in addition to the Local Rule was required." (Mot., 12:21-13:8.)

Defendants contend that "[i]gnorance of local rules is not excusable neglect" (Mot., 13:9), citing *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 414-415, where the court stated that "[t]he concept of 'excusable,' furthermore, is not synonymous with a get-out-of-jail-free card for parties who later come to regret past inaction or sitting on their rights. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. [Citations.] It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment... Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs.... The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded." (Internal quotations and citations omitted.)

Defendants thus assert that "[h]ere, reading Local Rule 3.25(f)(1) is all Plaintiffs needed to do. They have not been placed in their current situation without 'fault or negligence of his own and against which ordinary prudence could not have guarded.' Ordinary prudence requires reading local rules. It is not prudent to assume that a court vacating a trial date means that you are not bound by your attorney's executed agreements. There is no excusable neglect here, there is only the consequence of failing to read, failing to meet and confer and electing a strategy of doing whatever they want rather than requesting prior

permission in the form of a request for modification... The same goes for Plaintiffs' professed cluelessness about whether an FSC was calendared: that again is their own failure of diligence. It was Plaintiffs' responsibility to monitor the calendar and bring any omissions to the Court's attention." (Mot., 13:21-14:5.)

As noted by Defendants in their Reply at page 1, lines 10-14, regarding the lack of another FSC when the trial dates were set, "[a] plaintiff has an obligation to monitor the case in the trial court, to keep track of relevant dates, and to determine whether any filing, scheduling, or calendaring errors have occurred." *Jordan v Superstar Sandcars* (2010) 182 Cal. App. 4th 1416, 1422). Although the *Jordan* case discussed this obligation in the context of the five-year rule, it applies nevertheless to the situation in this case. It was incumbent upon Plaintiffs to bring the omission of another FSC when the trial dates were set if they thought it was needed. Since the only remaining task for the Court at such an FSC was to rule on one objection, the FSC was not truly needed because the ruling on the one objection could easily be done at the start of the court trial without a separate FSC.

In opposition, Plaintiffs focus on the vacated trial date, and that a new FSC was not set. Plaintiffs also assert that "Defendants must first establish that an operative May 2024 FSC order permanently governed the July/August 2026 trial. That predicate is precisely what the procedural record and Local Rule 3.25 do not establish." (Opp., 14:25-27, emphasis omitted.) However, as Defendants' moving papers point out, Local Rule 3.25(f)(1) provides that the original exhibit and witness list is still valid when a trial date is vacated, and this merely changes upon a modification request by a party. However, Defendants present no evidence that they moved to modify the witness list before the trial set for July 13, 2026 began. Although the Court found that an FAC did not occur before the most recent trial, the Court had not been presented with Defendants' opposition demonstrating that an FSC took place on May 24, 2024.

Additionally, Defendants contend that "[a]s set forth in the procedural history [], Plaintiffs have delayed this case through gamesmanship and inexcusable inattention. From 2021-2026 Plaintiffs' Trial Estimate was 3-4 days. On May 24, 2024 for the first FSC, Mr. Barkin approved and agreed to the 16-hour witness list and 46-exhibit exhibit list. That agreement was binding.

The essence of Plaintiffs' request for relief from Barkin's agreement is conclusory assertions that Mr. King views the case differently. (e.g., 7/28/26 Kihagi Dec. Pars. 10-11 ['Following Mr. Barkin's withdrawal, the case continued to develop through extensive trial preparation, including the development of additional evidence, witnesses, exhibits, and legal issues']; 7/29/26 King Dec. Pars. 16-17 ['The substitution or involvement of different trial counsel, the bankruptcy proceedings, the extended delay, continued development of the documentary record, and Plaintiffs' anticipated use of adverse and subpoenaed witnesses materially affected the time reasonably necessary to present Plaintiffs' case'].) What 'additional evidence'? What 'additional witnesses'? What 'additional legal issues'? And Why were those matters unknown to Plaintiffs at the time of Barkin's agreement? How could they possibly be? This is Plaintiffs' case. Defendants' answer has been on file since 2022." (Mot., 11:4-17.)

Defendants then cite *People v. Trujillo*

(1977) 67 Cal.App.3d 547, 554,

to assert that "Mr. King's substitution is irrelevant" (Mot., 11:18), because where the Court of Appeal in that case stated that "[i]t has been held that the mere fact there has been a change of attorneys does not relieve a party of a stipulation entered into by the previous attorney: An attorney who is substituted for another in a cause has no greater rights than his predecessor, nor is his client's position in the case in in [sic] any way changed by such substitution. He steps into the place of his predecessor, and stands, with reference to the case and to the other party, precisely as did his predecessor, and can repudiate or be relieved from an agreement that had been made by him only to the same extent and in the same manner as could his predecessor."

(Internal quotations and citations omitted.) The court also expressed that "[t]he grounds upon which the trial court may exercise its discretion are that the stipulation was entered into as the result of fraud, misrepresentation, mistake of fact, or excusable neglect, that the facts have changed, or that there is some other special circumstance rendering it unjust to enforce the stipulation."

(Ibid., internal quotations and citations

omitted.) Defendants assert that "Plaintiffs made no such showing. Plaintiffs simply ignored the 2024 exhibit and witness lists that they agreed to proceed upon. Where was any showing that Mr. Barkin committed excusable error in agreeing to the joint lists with Mr. Sahae? Or that he was defrauded into doing so? Where was his declaration that he was off in his trial estimate by at least four-fold and that was due to excusable neglect? Where was his declaration that Plaintiffs simply missed 50-60 documents they now claim are essential to

prosecution of their case and that was due to excusable neglect?" (Mot., 11:28-12:6.)

Plaintiffs' opposition briefly discusses *People v. Trujillo*, supra, asserting that "Plaintiffs rely upon the Court's subsequent vacatur of the trial and establishment of a new FSC and trial before Mr. King appeared." (Opp., 13:27-28.) However, Plaintiffs do not sufficiently demonstrate or discuss how the situation of the case has changed from the actions of their previous counsel, as Defendants' motion addresses. A new trial date and new counsel do not give rise to the circumstances contemplated by *People v. Trujillo*.

As Defendants assert in reply, "[t]he 'vacatur' does not mean the parties and Court start anew from square one[.]" (Reply, 4:9.) Defendants cite *Loney v. Superior Court* (1984) 160 Cal.App.3d 719, 723: "trial dates are often

vacated or continued, and that this is done for myriad reasons. If, every time a case was dropped from the trial calendar for however brief a time, the door was opened at the whim of the parties to a new round of pleadings ... trials would be delayed and court calendars further congested in an already overburdened system." Defendants assert, "[t]hat's exactly what is happening here. Trial has been delayed, and Defendants and this Court are both suffering the burdens of Plaintiffs' whims." (Reply, 4:13-15.)

Defendants' counsel also attests to prejudice, explaining, inter alia, that "[o]pening the door to Plaintiffs' new 105-exhibit and 89-hour witness lists in the middle of trial is severely prejudicial to Defendants. I have spent roughly three dozen hours preparing trial materials, trial presentation, examination outlines, and preparing my witnesses to testify. Those preparations necessarily relied on the existing exhibit and witness lists. Moreover, the Court repeatedly confirmed that those lists were operative, so I had no reason to incur the expense and effort of preparing based on additional witnesses and exhibits. Most of that time will be wasted if the trial evidence is completely changed in the manner envisioned by Plaintiffs. Even as to parts that I can still use, it would take substantial time to revise it and cross-refer it to the new evidence. Probably 10-20 hours or more." (Sahae Decl., ¶ 5.) "There will also be additional expense and effort litigating the new lists. By that I mean, so much of the matter is objectionable. Witnesses and documents abound which were not disclosed in discovery. The Court has indicated we need to file a new motion in limine (MIL) to raise these objections. While I will be able to incorporate some material from our prior MIL #1, that motion was denied for lack of specificity. I will have to go through the painstaking process of moving as to each specific exhibit and – since the Court wants to do

this as a pretrial motion and not in trial in the context of the evidence – I will have to lay all necessary foundation for the Court to understand the exhibit and why it is objectionable. This motion will be big, and time-consuming. I conservatively estimate at least 20 hours, likely 30 or more, to prepare moving papers and the reply. Argument as to each exhibit targeted by the motion is likely to consume a full trial afternoon altogether.” (Sahae Decl., ¶ 6.) “That’s just the exhibits. Plaintiffs’ excessive witness list will also necessitate an MIL. Most of these witnesses have no relevant testimony to offer, and Plaintiffs cannot show otherwise or make a valid offer of proof because Plaintiffs haven’t deposed any of the witnesses. They have no idea what the witnesses would say if called to the stand, so they are incapable of making an offer of proof that is honest and specific. Plaintiffs are expressly intending to conduct their depositions at trial, on the witness stand. That’s what Ms. Kihagi told me in the August 3, 2026 meet and confer call. In reference to the lender witnesses, i.e. Yu Sheng Victor Liu, Eric Liu, and Xiang Liu, she said ‘we don’t know what they’re going to say, let’s find out.’ I was so shocked by that I wrote it down. The witness MIL is likely to require upwards of 15 hours to prepare moving papers, reply, and to conduct hearing argument. Depending on the outcome of that MIL, I can expect to have to spend upwards of 30 hours preparing several new witness examinations (from three total witnesses to a dozen), and preparing Defendants’ witnesses for colossally lengthier examinations, with dozens of new exhibits.” (Sahae Decl., ¶ 7.) “The Court has also requested a new trial brief. Again, though I will be able to incorporate material from the prior trial brief, that prior brief addressed the evidence and testimony in reliance upon the signed and agreed lists. I anticipate another 10-20 hours of work to create the new brief. Once the actual trial resumes, it will be in increased duration, again to the expense and financial burden of Defendants. Plaintiffs’ proposed witness list is 89 hours of testimony; if they even bring in half of that it is 11 more trial half-days.” (Sahae Decl., ¶ 8.) The Court recognizes that Defendants also present significant prejudice regarding time and expense if the Court denies this motion for reconsideration.

In Plaintiffs’ declaration in support of the opposition, Anne Kihagi attests that Defendants’ counsel signed the stipulation on behalf of her former counsel, Mr. Barkin, and that this was not authorized. (Kihagi Decl., ¶¶ 9-11.) However, in Defendants’ counsel’s reply declaration, he attests that he “would never, ever, file a signature of opposing counsel without their authorization;” rather, “Mr. Barkin provided the authorization to me orally, via telephone, on May 23, 2024 at about 12:30 p.m. I can be so specific about the date and time of the call because promptly after the phone call I emailed my staff to tell

them Barkin approved the lists. Attached hereto as Exhibit A is a true and correct of my email to staff (with other internal communications redacted).” (Sahe Reply Decl., ¶¶ 2-3, Ex. A.) Accordingly, Defendants’ counsel attests to his first-hand experience that he did not sign without authorization. Moreover, as noted in Defendants’ reply papers an attorney has authority “to make such tactical decisions as whether to call a particular witness, and the court and opposing counsel must be able to rely upon the decisions he makes, even when the client voices opposition in open court.” (Knabe v. Brister (2007) 154 Cal.App.4th 1316, 1324.) Defendants contend that “[t]his is the fundamental point of Defendants’ motion and the prejudice they are being forced to suffer: they did rely on the joint filings. So did the Court in rendering its orders, and Defendants further relied on those.” (Reply 5:21-23.)

Based on the foregoing, Defendants demonstrate that an FSC occurred, and Plaintiffs did not demonstrate good cause for relief from former counsel Barkin’s stipulations, nor did Plaintiffs demonstrate that they sought to modify the existing pretrial order that was based on the joint witness and exhibit lists signed by the parties prior to the May 24, 2024 FSC. Accordingly, the Court grants Defendants’ motion for reconsideration.

Conclusion

Based on the foregoing, Defendants’ motion for reconsideration is GRANTED. The Court vacates the July 30, 2026 Ex Parte Order granting relief under Code of Civil Procedure section 473, subdivisions (a) and (b). The court sets a conference on _____, 2026 at _____ in Dept. 508 to discuss dates for the resumption of the trial.

Defendants are ordered to give notice of this Order.

DATED: September 14, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court